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APPLICATION NO.	FILING DATE	FIRST NAMED INVENTOR	ATTORNEY DOCKET NO.	CONFIRMATION NO.
17/866,207	07/15/2022	Scott A. McFadden	YAK3M4	2593

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KOLISCH HARTWELL, P.C.
520 SW YAMHILL STREET, SUITE 520
PORTLAND, OR 97204

EXAMINER
ROERSMA, ANDREW MARK

ART UNIT	PAPER NUMBER
3637	

NOTIFICATION DATE	DELIVERY MODE
02/28/2024	ELECTRONIC

Please find below and/or attached an Office communication concerning this application or proceeding.

The time period for reply, if any, is set in the attached communication.

Notice of the Office communication was sent electronically on above-indicated "Notification Date" to the following e-mail address(es):

docketing@khpatent.com
veronica@khpatent.com

Office Action Summary	Application No. 17/866,207	Applicant(s) McFadden et al.	
	Examiner ANDREW ROERSMA	Art Unit 3637	AIA (FITF) Status Yes

-- The MAILING DATE of this communication appears on the cover sheet with the correspondence address --

Period for Reply

A SHORTENED STATUTORY PERIOD FOR REPLY IS SET TO EXPIRE 3 MONTHS FROM THE MAILING DATE OF THIS COMMUNICATION.

- Extensions of time may be available under the provisions of 37 CFR 1.136(a). In no event, however, may a reply be timely filed after SIX (6) MONTHS from the mailing date of this communication.
- If NO period for reply is specified above, the maximum statutory period will apply and will expire SIX (6) MONTHS from the mailing date of this communication.
- Failure to reply within the set or extended period for reply will, by statute, cause the application to become ABANDONED (35 U.S.C. § 133). Any reply received by the Office later than three months after the mailing date of this communication, even if timely filed, may reduce any earned patent term adjustment. See 37 CFR 1.704(b).

Status

1)☐ Responsive to communication(s) filed on _____.

☐ A declaration(s)/affidavit(s) under **37 CFR 1.130(b)** was/were filed on _____.

2a)☐ This action is **FINAL.** 2b) ☑ This action is non-final.

3)☐ An election was made by the applicant in response to a restriction requirement set forth during the interview on _____; the restriction requirement and election have been incorporated into this action.

4)☐ Since this application is in condition for allowance except for formal matters, prosecution as to the merits is closed in accordance with the practice under *Ex parte Quayle*, 1935 C.D. 11, 453 O.G. 213.

Disposition of Claims*

5) ☑ Claim(s) 1-20 is/are pending in the application.

5a) Of the above claim(s) _____ is/are withdrawn from consideration.

6) ☐ Claim(s) _____ is/are allowed.

7) ☑ Claim(s) 1-20 is/are rejected.

8) ☐ Claim(s) _____ is/are objected to.

9) ☐ Claim(s) _____ are subject to restriction and/or election requirement

* If any claims have been determined allowable, you may be eligible to benefit from the **Patent Prosecution Highway** program at a participating intellectual property office for the corresponding application. For more information, please see http://www.uspto.gov/patents/init_events/pph/index.jsp or send an inquiry to **PPHfeedback@uspto.gov.**

Application Papers

10)☐ The specification is objected to by the Examiner.

11)☑ The drawing(s) filed on 15 July 2022 is/are: a)☑ accepted or b)☐ objected to by the Examiner.

Applicant may not request that any objection to the drawing(s) be held in abeyance. See 37 CFR 1.85(a).

Replacement drawing sheet(s) including the correction is required if the drawing(s) is objected to. See 37 CFR 1.121(d).

Priority under 35 U.S.C. § 119

12)☐ Acknowledgment is made of a claim for foreign priority under 35 U.S.C. § 119(a)-(d) or (f).

Certified copies:

a)☐ All b)☐ Some** c)☐ None of the:

1.☐ Certified copies of the priority documents have been received.

2.☐ Certified copies of the priority documents have been received in Application No. _____.

3.☐ Copies of the certified copies of the priority documents have been received in this National Stage application from the International Bureau (PCT Rule 17.2(a)).

** See the attached detailed Office action for a list of the certified copies not received.

Attachment(s)

1) ☑ Notice of References Cited (PTO-892)

2) ☑ Information Disclosure Statement(s) (PTO/SB/08a and/or PTO/SB/08b) Paper No(s)/Mail Date _____.

3) ☐ Interview Summary (PTO-413) Paper No(s)/Mail Date _____.

4) ☑ Other: foreign art cited on PTO-892.

DETAILED ACTION

Notice of Pre-AIA or AIA Status

The present application, filed on or after March 16, 2013, is being examined under the first inventor to file provisions of the AIA.

Claim Objections

Claim 7 is objected to because of the following informalities: In line 1, the recitation "1" should be "3".

Claim 14 is objected to because of the following informalities: In line 2, the recitation "multiple rail" should be "multiple said rail".

Claim 17 is objected to because of the following informalities: In line 2, the recitation "each further" should be "each said latch further".

Appropriate correction is required.

Claim Rejections - 35 USC § 102

The following is a quotation of the appropriate paragraphs of 35 U.S.C. 102 that form the basis for the rejections under this section made in this Office action:

> A person shall be entitled to a patent unless –
>
> (a)(1) the claimed invention was patented, described in a printed publication, or in public use, on sale, or otherwise available to the public before the effective filing date of the claimed invention.

Claim(s) 1 is/are rejected under 35 U.S.C. 102(a)(1) as being anticipated by US 6,543,436 (Montgomery).

With respect to claim 1: Montgomery discloses a portable kitchen assembly, comprising: a substantially rectangular container (at least base unit 20) having a top wall (top lid 12 and upper edge 20a of base unit 20), bottom wall (underside 21 and/or the wall forming underside 21), back wall (rear shelf 16), front wall (front shelf 14), first and second

side walls (not numbered, see Figs. 1-3 and 7-8), the front wall being configured to open to a kitchen counter position (at least Fig. 2), and stowable legs (legs 30-31) attachable to an external side of the bottom wall (via ridges 21a, 21b) for supporting the container at a convenient height for standing preparation of food (at least Fig. 2).

Claim(s) 1 is/are rejected under 35 U.S.C. 102(a)(1) as being anticipated by US 1,304,279 (Dietrich).

With respect to claim 1: Dietrich discloses a portable kitchen assembly, comprising: a substantially rectangular container ("main frame or body" @ page 1, line 45, see Figs. 1-2 and 4) having a top wall (top board 5), bottom wall (bottom board 4), back wall (leaf 38), front wall (leaf 39), first and second side walls (end boards 6 and 7), the front wall being configured to open to a kitchen counter position (phantom in Figs. 1 and 4), and stowable legs (legs 21-22 and 30-31) attachable to an external side of the bottom wall (via socket plates 15-18) for supporting the container at a convenient height for standing preparation of food (Figs. 2 and 4).

Claim(s) 1 is/are rejected under 35 U.S.C. 102(a)(1) as being anticipated by US 4,779,940 (Ralston).

With respect to claim 1: Ralston discloses a portable kitchen assembly, comprising: a substantially rectangular container (container 12) having a top wall (top wall 50), bottom wall (bottom wall 57), back wall (door-container 15), front wall (door-container 14), first and second side walls (side walls 70 and 71), the front wall being configured to open to a kitchen counter position (Fig. 1), and stowable legs (comprised by stand 11)

attachable (capable of being attached) to an external side of the bottom wall for supporting the container at a convenient height for standing preparation of food (Fig. 1).

Claim Rejections - 35 USC § 103

The following is a quotation of 35 U.S.C. 103 which forms the basis for all obviousness rejections set forth in this Office action:

> A patent for a claimed invention may not be obtained, notwithstanding that the claimed invention is not identically disclosed as set forth in section 102, if the differences between the claimed invention and the prior art are such that the claimed invention as a whole would have been obvious before the effective filing date of the claimed invention to a person having ordinary skill in the art to which the claimed invention pertains. Patentability shall not be negated by the manner in which the invention was made.

The factual inquiries for establishing a background for determining obviousness under 35 U.S.C. 103 are summarized as follows:

1. Determining the scope and contents of the prior art.
2. Ascertaining the differences between the prior art and the claims at issue.
3. Resolving the level of ordinary skill in the pertinent art.
4. Considering objective evidence present in the application indicating obviousness or nonobviousness.

This application currently names joint inventors. In considering patentability of the claims the examiner presumes that the subject matter of the various claims was commonly owned as of the effective filing date of the claimed invention(s) absent any evidence to the contrary. Applicant is advised of the obligation under 37 CFR 1.56 to point out the inventor and effective filing dates of each claim that was not commonly owned as of the effective filing date of the later invention in order for the examiner to consider the applicability of 35 U.S.C. 102(b)(2)(C) for any potential 35 U.S.C. 102(a)(2) prior art against the later invention.

Claim(s) 2 is/are rejected under 35 U.S.C. 103 as being unpatentable over US 6,543,436 (Montgomery) as applied to claim 1 above, and further in view of US 2,944,862 (Heil).

With respect to claim 2: Montgomery does not disclose "wherein the legs are adjustable to a plurality of heights" as claimed.

Heil col. 4, lines 20-26 disclose telescopic legs 58 attached to a case 1, to compensate for variation in ground level or to adjust the working height of the case 1.

It would have been obvious to one of ordinary skill in the art before the effective filing date of the invention to modify Montgomery's legs 30-31 to be telescopic legs like Heil's legs 58, in order to compensate Montgomery's camp box for variation in ground level or to adjust the working height thereof.

The modified, telescopic legs meet "wherein the legs are adjustable to a plurality of heights" as claimed.

Claim(s) 3 and 6-7 is/are rejected under 35 U.S.C. 103 as being unpatentable over US 6,543,436 (Montgomery) as applied to claim 1 above, and further in view of US 10,054,354 (Kennedy).

With respect to claims 3 and 7: Montgomery discloses rack supports 64 and 66 that can be withdrawn from the sides of the base unit 20. Trays 64a and 66a can be mounted to the supports 64 and 66, to be used as shelves. The supports 64 and 66 can further be used as towel racks or garbage bag holders, when the trays 64a and 66a are not used.

The racks supports 64 and 66 are "a first side counter member" and "a second side counter member" as claimed.

Montgomery does not disclose "further including a first side counter member alternatively attachable to an external side of the first side wall and an external side of the

second side wall" as recited in claim 3 and/or "further including a second side counter member alternatively attachable to the external side of the first side wall and the external side of the second side wall" as recited in claim 7.

Kennedy discloses attachment plates 42 for selective attachment of a tray 19 to a portable cooler 10. The tray has support arms 19A, each with a stud that slides into the keyhole pattern of the plates 42. The plates 42 are bolted into recesses in base 12B such that when tray 19 is removed, nothing projects from the base 12B. This precludes unwanted catching of items (clothes, etc.) on the base 12B. See Figs. 5-6 and col. 5, lines 14-55.

It would have been obvious to one of ordinary skill in the art before the effective filing date of the invention to put Kennedy's attachment plates 42 on the side walls of Montgomery's base unit 20, as an obvious variation of how Montgomery's rack supports 64 and 66 are set in their use position and/or how the rack supports 64 and 66 connect to the base unit 20.

With respect to claim 6: The rack support 64 or 66 not having the tray 64a or 66a therein meets "wherein the first side counter has an opening" as claimed.

The recitation "configured to support a sink" does not positively recite the sink, due to the use of "configured to". As written, the aforementioned recitation requires an opening that is able to and/or shaped to support a sink.

The rack support 64 or 66, not having the tray 64a or 66a therein, is capable of supporting an appropriately-sized sink. This meets "configured to support a sink" as claimed.

Claim(s) 3-4 and 6-7 is/are rejected under 35 U.S.C. 103 as being unpatentable over US 6,543,436 (Montgomery) as applied to claim 1 above, and further in view of US 2018/0306226 A1 (Huish).

With respect to claims 3 and 7: Montgomery discloses rack supports 64 and 66 that can be withdrawn from the sides of the base unit 20. Trays 64a and 66a can be mounted to the supports 64 and 66, to be used as shelves. The supports 64 and 66 can further be used as towel racks or garbage bag holders, when the trays 64a and 66a are not used.

The racks supports 64 and 66 are "a first side counter member" and "a second side counter member" as claimed.

Montgomery does not disclose "further including a first side counter member alternatively attachable to an external side of the first side wall and an external side of the second side wall" as recited in claim 3 and/or "further including a second side counter member alternatively attachable to the external side of the first side wall and the external side of the second side wall" as recited in claim 7.

Huish discloses rails 208 that are used to mount a wide variety of accessories on a portable cooler 100. Such accessories include, but are not limited to, rod holders, umbrellas, canopies, shade covers, tables, cutting boards, wheels, storage containers, pouches, bags, drink holders, leveling struts, extendable legs, handles, and a cradle system. See Figs. 1-30 and [0064].

It would have been obvious to one of ordinary skill in the art before the effective filing date of the invention to put Huish's rails 208 on the side walls of Montgomery's base

unit 20, as an obvious variation of how Montgomery's rack supports 64 and 66 are set in their use position and/or how the rack supports 64 and 66 connect to the base unit 20.

This enables accessories beyond just the rack supports 64 and 66 to be mounted to Montgomery's invention.

With respect to claim 4: Huish discloses plural rails 208 at different heights. In the combination, this meets and/or makes obvious "wherein the external side of each of the first side wall and the second side wall has plural rail structures for selectably fastening the first side counter at multiple different heights" as claimed.

With respect to claim 6: The rack support 64 or 66 not having the tray 64a or 66a therein meets "wherein the first side counter has an opening" as claimed.

The recitation "configured to support a sink" does not positively recite the sink, due to the use of "configured to". As written, the aforementioned recitation requires an opening that is able to and/or shaped to support a sink.

The rack support 64 or 66, not having the tray 64a or 66a therein, is capable of supporting an appropriately-sized sink. This meets "configured to support a sink" as claimed.

Claim(s) 5-6 is/are rejected under 35 U.S.C. 103 as being unpatentable over US 6,543,436 (Montgomery) in view of US 10,054,354 (Kennedy) as applied to claim 3 above, and further in view of US 2006/0076861 A1 (Baughman).

Claim(s) 5-6 is/are rejected under 35 U.S.C. 103 as being unpatentable over US 6,543,436 (Montgomery) in view of US 2018/0306226 A1 (Huish) as applied to claim 3 above, and further in view of US 2006/0076861 A1 (Baughman).

With respect to claim 5: Montgomery does not disclose "wherein the first side counter has a telescoping leg for supporting the side counter in a horizontal orientation" as claimed.

Baughman discloses a support leg 172 for a table 136. The support leg 172 includes telescoping members 174 and a stabilizer 176 that can be secured to the ground with a stake 178, weighted item, or other mechanism. See Fig. 1D and [0055].

It would have been obvious to one of ordinary skill in the art before the effective filing date of the invention to add Baughman's support leg 172 to Montgomery's rack support 64 and/or 66, in order to provide ground-contacting support therefor.

With respect to claim 6: Even though claim 6, as written, does not positively recite the sink, Baughman shows that it is known in the art to put a sink 144 in an opening 142 of a side table 120. See Fig. 1B and [0049].

It would have been obvious to one of ordinary skill in the art before the effective filing date of the invention to form one of Montgomery's rack supports 64 or 66 as Baughman's table 120/opening 142/sink 144, in order to provide a place to wash hands and/or food.

Claim(s) 8 is/are rejected under 35 U.S.C. 103 as being unpatentable over US 6,543,436 (Montgomery) as applied to claim 1 above, and further in view of US 2006/0076861 A1 (Baughman).

With respect to claim 8: Montgomery does not disclose "further including a kitchen implement organizer configured for attachment to an external side of the top wall" as claimed.

See Montgomery Figs. 2-3 for a lamppost 70 that is inserted into a hole 72 in the upper edge 20a of base unit 20.

Baughman discloses a rack assembly 148 that can hold and/or organize kitchen implements. The rack assembly 148 is similar to Montgomery's lamppost 70 that supports a lamp 73 in that rack assembly 148 supports a lantern 167. Baughman's rack assembly 148 has two vertical supports 160 that engage openings which are analogous to Montgomery's hole 72.

It would have been obvious to one of ordinary skill in the art before the effective filing date of the invention to modify Montgomery's upper edge 20a to have two holes 72, and to mount Baughman's rack assembly 148 to said two holes 72, in order to hold more than just Montgomery's lamp 73 above the base unit 20.

Claim(s) 9 is/are rejected under 35 U.S.C. 103 as being unpatentable over US 6,543,436 (Montgomery) as applied to claim 1 above, and further in view of US 4,501,457 (Pond).

With respect to claim 9: Montgomery's work surface 42 meets "further including an interior shelf" as claimed. The utensil drawer 60 meets "and a utensil tray" as claimed.

Montgomery does not disclose the drawer 60 "suspended from the interior shelf" as claimed.

Pond discloses drawer 36 suspended from a panel 12 by rails 34 attached to the surface 32 of the panel 12. See Figs. 1-3 and col. 2, lines 1-2.

It would have been obvious to one of ordinary skill in the art before the effective filing date of the invention to mount Montgomery's drawer 60 to the bottom of work surface

42 using Pond's rails 34 attached to the bottom of work surface 42, because Pond shows that is a known way in the art to slidably support a drawer.

Claim(s) 10-11 and 16 is/are rejected under 35 U.S.C. 103 as being unpatentable over US 6,543,436 (Montgomery) in view of US 2,944,862 (Heil).

With respect to claim 10: Montgomery discloses a portable food preparation apparatus, comprising: a main body (at least base unit 20) including: a top wall (top lid 12 and upper edge 20a of base unit 20) and a bottom wall (underside 21 and/or the wall forming underside 21), three side walls (side wall having strap 33, side wall having strap 34, and panel 105 and/or rear shelf 16) connecting the top and bottom walls, a door (front shelf 14) hinged to an edge of the bottom wall (via front hinge 22), and an interior compartment defined by the top, bottom, and side walls (not-numbered, see at least Fig. 2), wherein the door has a transport position (vertical) perpendicular to the top and bottom walls (Fig. 1), and a food preparation position (horizontal) in which the door is parallel the top and bottom walls (shelf 14 is parallel to the bottom wall and upper edge 20a in Fig. 2 and/or a position similar to Fig. 2, but with top lid 12 closed), and wherein the interior compartment is configured for storage of food preparation equipment (e.g., cooktop 35) when the door is in the transport position, and an inner side of the door is configured for use as a work surface when the door is in the food preparation position (Fig. 2).

Montgomery does not disclose the front shelf 14 "securable to the top wall" as claimed.

Heil discloses a latch 13 for securing a front panel 3 to a top section 8.

It would have been obvious to one of ordinary skill in the art before the effective filing date of the invention to add Heil's latch 13 between Montgomery's front shelf 14 and top lid 12, in order to secure the front shelf 14 in the vertical position thereof.

With respect to claim 11: Montgomery, as modified, meets and/or makes obvious wherein the door is latched to the top wall in the transport position (using latch 13), and unlatched from the top wall in the food preparation position.

With respect to claim 16: Montgomery, as modified, meets and/or makes obvious further including a set of legs (Montgomery's legs 30, 31) which are removably attachable to the bottom wall, for support of the main body.

Claim(s) 12 is/are rejected under 35 U.S.C. 103 as being unpatentable over US 6,543,436 (Montgomery) in view of US 2,944,862 (Heil) as applied to claim 10 above, and further in view of US 2018/0306226 A1 (Huish).

With respect to claim 12: Montgomery does not disclose "wherein a side wall of the three side walls includes a rail structure on an exterior side, and the portable food preparation apparatus includes an accessory mountable to the rail structure" as claimed.

Huish discloses rails 208 that are used to mount a wide variety of accessories on a portable cooler 100. Such accessories include, but are not limited to, rod holders, umbrellas, canopies, shade covers, tables, cutting boards, wheels, storage containers, pouches, bags, drink holders, leveling struts, extendable legs, handles, and a cradle system. See Figs. 1-30 and [0064].

It would have been obvious to one of ordinary skill in the art before the effective filing date of the invention to put Huish's rails 208 on the side walls of Montgomery's base

unit 20, in order to mount the accessories disclosed in Huish on Montgomery's camp box and/or as an obvious variation of how Montgomery's rack supports 64 and 66 connect to the base unit 20.

Claim(s) 13-14 is/are rejected under 35 U.S.C. 103 as being unpatentable over US 6,543,436 (Montgomery) in view of US 2,944,862 (Heil) and US 2018/0306226 A1 (Huish) as applied to claim 10 above, and further in view of US 2006/0076861 A1 (Baughman).

With respect to claim 13: In the combination, Huish makes obvious a table connected to the rails 208. Such a table meets and/or makes obvious "wherein the accessory includes a work surface" as claimed.

See Huish Figs. 14-22 for accessory mounting assemblies that allow accessories to be attached to a rail. It is obvious to have one such mounting assembly at each lateral edge of the table, in order to attach the table to a rail 208. This meets and/or makes obvious "and a pair of connectors configured for removable attachment to the rail structure" as claimed.

Montgomery in view of Heil and Huish does not disclose or make obvious the table "having a leg" as claimed.

Baughman discloses a support leg 172 for a table 136. The support leg 172 includes telescoping members 174 and a stabilizer 176 that can be secured to the ground with a stake 178, weighted item, or other mechanism. See Fig. 1D and [0055].

It would have been obvious to one of ordinary skill in the art before the effective filing date of the invention to add Baughman's support leg 172 to the table, in order to provide ground-contacting support therefor.

With respect to claim 14: The combination of prior art meets and/or makes obvious wherein the leg is adjustable in length (like Baughman's telescoping leg 172) and the side wall includes multiple rail structures on the exterior side (like Huish's multiple rails 208 on a single side of the box), the work surface being thereby securable at multiple working heights (by mounting at the upper or lower rail 208).

Claim(s) 15 is/are rejected under 35 U.S.C. 103 as being unpatentable over US 6,543,436 (Montgomery) in view of US 2,944,862 (Heil) as applied to claim 10 above, and further in view of US 1,304,279 (Dietrich).

With respect to claim 15: Montgomery does not disclose "wherein the top wall includes a pair of handles for lifting the portable food preparation apparatus" as claimed.

Montgomery discloses lifting straps 33, 34 for facilitating transport, but the straps 33, 34 are not on the top wall as claimed.

Dietrich discloses a handle 60 in the top board 5, in order to carry package 1 like a suit case (Fig. 2 and page 2, lines 76-79).

It would have been obvious to one of ordinary skill in the art before the effective filing date of the invention to move Montgomery's lifting straps 33, 34 to the top lid 12, because Dietrich shows that it is known in the art to have the handles in that location.

Claim(s) 17 is/are rejected under 35 U.S.C. 103 as being unpatentable over US 6,543,436 (Montgomery) in view of US 2,944,862 (Heil) as applied to claim 10 above, and further in view of US 2017/0218667 (Lane).

With respect to claim 17: Montgomery in view of Heil does not meet and/or make obvious "wherein the door is securable to the top wall by a pair of over center latches, each further including a cam lock" as claimed.

Lane discloses an over-center latch with a lock cam 58 that prevents opening.

It would have been obvious to one of ordinary skill in the art before the effective filing date of the invention to use Lane's latch between the door and top wall, as an obvious variation of Heil's latches 13. Lane's latch provides the additional benefit of being lockable.

Claim(s) 18 is/are rejected under 35 U.S.C. 103 as being unpatentable over US 6,543,436 (Montgomery) in view of US 4,501,457 (Pond) and US 2006/0076861 A1 (Baughman).

With respect to claim 18: Montgomery discloses a portable kitchen, comprising a rectangular box (Fig. 1) including an enclosure (at least base unit 20) and a front door (front shelf 14), the front door opening from a vertical position (Fig. 1) through 90 degrees to a horizontal position (Fig. 2, using hinge 22), a horizontal shelf (work surface 42) mounted in the enclosure, a utensil tray (utensil drawer 60), and a structure (lamppost 70) being selectively mountable in a vertical orientation on top of the enclosure (Fig. 2).

Montgomery does not disclose the drawer 60 "suspended from the horizontal shelf" as claimed.

Pond discloses drawer 36 suspended from a panel 12 by rails 34 attached to the surface 32 of the panel 12. See Figs. 1-3 and col. 2, lines 1-2.

It would have been obvious to one of ordinary skill in the art before the effective filing date of the invention to mount Montgomery's drawer 60 to the bottom of work surface 42 using Pond's rails 34 attached to the bottom of work surface 42, because Pond shows that is a known way in the art to slidably support a drawer.

Montgomery's lamppost 70 does not meet "an organizer having a plurality of pockets" as claimed.

Baughman discloses a rack assembly 148 that can hold and/or organize kitchen implements. The rack assembly 148 is similar to Montgomery's lamppost 70 that supports a lamp 73 in that rack assembly 148 supports a lantern 167. Baughman's rack assembly 148 has two vertical supports 160 that engage openings which are analogous to Montgomery's hole 72.

It would have been obvious to one of ordinary skill in the art before the effective filing date of the invention to modify Montgomery's upper edge 20a to have two holes 72, and to mount Baughman's rack assembly 148 to said two holes 72, in order to hold more than just Montgomery's lamp 73 above the base unit 20.

See Baughman Fig. 1C. In the combination, the shelves 164 form "a plurality of pockets" as claimed.

Claim(s) 19-20 is/are rejected under 35 U.S.C. 103 as being unpatentable over US 6,543,436 (Montgomery) in view of US 4,501,457 (Pond) and US 2006/0076861 A1 (Baughman) as applied to claim 18 above, and further in view of US 2018/0346229 A1 (Guerdrum).

With respect to claim 19: Montgomery does not disclose "wherein the enclosure and the door comprise rotomolded plastic" as claimed.

Guerdrum [0106] discloses roto-molding body 110 and/or lid 120 from plastic.

It would have been obvious to one of ordinary skill in the art before the effective filing date of the invention to roto-mold Montgomery's structures from plastic, as an obvious variation of Montgomery's aluminum construction.

With respect to claim 20: See Guerdrum's figures. The structures have a plurality of recesses on their inner surfaces. In the combination, this meets and/or makes obvious "wherein the door and each wall of the enclosure includes a plurality of recesses" as claimed.

Conclusion

The prior art made of record and not relied upon is considered pertinent to applicant's disclosure.

Any inquiry concerning this communication or earlier communications from the examiner should be directed to ANDREW ROERSMA whose telephone number is (571)270-3185. The examiner can normally be reached M-F 8:00-4:00.

Examiner interviews are available via telephone, in-person, and video conferencing using a USPTO supplied web-based collaboration tool. To schedule an interview, applicant is encouraged to use the USPTO Automated Interview Request (AIR) at http://www.uspto.gov/interviewpractice.

If attempts to reach the examiner by telephone are unsuccessful, the examiner's supervisor, Daniel Troy can be reached on 571-270-3742. The fax phone number for the organization where this application or proceeding is assigned is 571-273-8300.

Information regarding the status of published or unpublished applications may be obtained from Patent Center. Unpublished application information in Patent Center is available to registered users. To file and manage patent submissions in Patent Center, visit: https://patentcenter.uspto.gov. Visit https://www.uspto.gov/patents/apply/patent-center for more information about Patent Center and https://www.uspto.gov/patents/docx for information about filing in DOCX format. For additional questions, contact the Electronic Business Center (EBC) at 866-217-9197 (toll-free). If you would like assistance from a USPTO Customer Service Representative, call 800-786-9199 (IN USA OR CANADA) or 571-272-1000.

/ANDREW ROERSMA/
Primary Examiner, Art Unit 3637